ORDINANCE NO. 109 OF THE CITY OF RECTOR

Entitled an Ordinance to restrain the running at large within the corporate limits of the City of Rector, Arkansas, of any animal or animals of the horse, cow, ass, sheep, goat or hog kind, and to provide a penalty for the violation of the same.

BE IT ORDAINED by the City Council of the City of Rector, Arkansas:

Section 1. It shall be unlawful for any horse, mule, jack, jenny, hog, sheep, goat, bull, cow, calf or steer to run at large within the corporate limits of the City of Rector, Arkansas.

Section 2. All animals found running at large in violation of the provisions of the preceeding section shall be taken up by the marshall or by his deputy, or by any other person appointed by the marshall, or by any private citizen, and confined in some suitable yard or lot to be procured for that purpose by the City Council.

Section 3. The marshall, his deputy or any private citizen who shall take up and confine any such animal as provided in the preceeding section shall be entitled to receive for such service a fee of twenty-five cents for each animal so taken up and confined, provided, that where more than one animal is taken up at one and the same time the person so taking and confining the same shall receive twenty-five cents for the first, and ten cents for each additional animal so taken up and confined, same to be paid by the City out of the general fund in the hands of the City Treasurer.

Section 4. Whenever any animal shall be impounded as provided in this Ordinance, the Marshall or his deputy shall at once notify the owner thereof, if known, that the animal has been taken possession of, and if the owner thereof shall within twenty-four hours after being notified appear and claim his stock the same shall be delivered to such owner upon his payment to the City a penalty of One ($1.00) Dollar, provided, that where more than one head has been so impounded belonging to one and the same man at one and the same time the same shall be delivered to him upon his payment to the City a penalty of One ($1.00) dollar for the first head so impounded and twenty-five cents for each additional head so impounded, and upon his failure to appear and prove his ownership to said animal within twenty-four hours, or if the owner of said animal so impounded be unknown to the marshall or his deputy then such officer or his deputy shall post written notices in at least three public places and shall give notice in some newspaper published in the City giving a description of the animal or animals setting out therein the marks, brands and flesh marks of the animal or animals so impounded, and calling upon the owner of such animal or animals to prove his ownership therein to such officer or his deputy having the same in custody within ten days after the publication of such notice, and upon such proof being made to such officer or his deputy and the payment to said City of the penalty therein provided for and the payment of an additional sum of fifteen cents for each day said animal shall have been in custody, if said animal be a hog, sheep or goat; twenty-five cents for each day such animal shall have been in custody if said animal be a bull, cow, calf orsteer, and forty cents for each day said animal shall have been in custody if such animal be a jack, jenny, horse or mule, excepting, however, the first twenty-four hours, the officer or his deputy have such animal or animals in custody shall at once deliver same to such owner.

Section 5. If the owner of any such animal or animals so impounded shall not appear and prove his ownership to such animal within ten days from the date of the publication of the notice provided for in the preceeding section, the marshall of said City shall sell the same to the highest bidder at public auction, and the proceeds of said sale shall be placed to the general fund of said City.

Section 6. This Ordinance shall take effect and be in force from and after its passage and publication.

Passed and approved this the 10th day of July, 1916.

Signed: J. S. Bucy,
MAYOR

Attest:

Rudy Hill,
RECORDER